

19.	25CV1737	STEVEN P. VIANI ET AL VS. ROGER LEASURE ET AL
DEMURRER		

Defendant, Roger Leasure III, as Trustee of the Leasure Family Trust Dated August 3, 2004 (“Defendant”), demurs to Plaintiffs, Steven P. Viani and Karen E. Viani, as Trustees of the Viani Revocable Trust, dated November 28, 2022; John Chapman and Jeanne Chapman, as Husband and Wife, as community property and right of survivorship (collectively “Plaintiffs”), First Amended Complaint (“FAC”). On April 27, 2026, Plaintiffs filed an opposition. Defendants filed a Reply on May 6, 2026.

Finding the meet and confer efforts inadequate, on July 10, 2026, the Court ordered the parties to meet and confer and file a joint status report no later than August 28, 2026. In compliance with the Court’s order, the Parties timely filed the joint status report which has narrowed the issues that remain unresolved.

Background

On January 2, 2026, Plaintiffs filed a First Amended Verified Complaint to Quiet Title to Easement for the following causes of action: 1) Declaratory Relief re Express Easement; 2) Prescriptive Easement; 3) Declaratory Relief re use of Equestrian Way; 4) Quiet Title; and 5) Interference with Easement/Injunctive Relief.

Legal Principles

[A] demurrer challenges only the legal sufficiency of the complaint, not the truth or the accuracy of its factual allegations or the plaintiff’s ability to prove those allegations.” (*Amarel v. Connell* (1998) 202 Cal.App.3d 137, 140.) A demurrer is directed at the face of the complaint and to matters subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) All properly pleaded allegations of fact in the complaint are accepted as true, however improbable they may be, but not the contentions, deductions or conclusions of facts or law. (*Blank v. Kirwan* (1985) 39 Cal.3d gives “the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Blank, *supra*, 39 Cal.3d at p. 318.)

Discussion

Pursuant to the meet and confer efforts, the remaining issues remain unresolved:

1. Plaintiffs failed to identify an actual written easement

Defendant argues that Plaintiffs have not identified a valid written easement burdening Defendant’s property, as the October 2, 1991, judgment terminated the interests of Carrington, Seeley, and any other persons known or unknown claiming through those interests. The documents recorded at Book 2191, Pages 65 and 66 were recorded in the wrong order because Carrington first conveyed away the property and thereafter purported

to grant an easement over property in which she no longer held an interest in. Defendant further contends that any easement interests were extinguished by merger when Yee acquired the relevant interests in 1983 and therefore could not thereafter be granted. Defendant argues that an easement may have been reserved in certain documents but was never properly granted to Plaintiffs' predecessors and was ultimately terminated as a matter of law.

Plaintiffs argue that to ensure no future lot would ever be landlocked, Seeley embedded a master reciprocal easement directly into each deed which operated simultaneously as a reservation, holding back a 60-foot-wide right-of-way across conveyed land to benefit his remaining parcels, and an express grant, giving each new buyer a shared right to utilize the developing road system. These rights automatically attached to the land, fracturing and multiplying rather than diluting as the original four 160-acre grantees subsequently divided their blocks into sixteen 40-acre parcels.

As the original deed allowed the exact location of these strips to be "determined at a later time," the five separate Records of Survey recorded in 1983 and 1984 serve as the definitive physical blueprints of the system. As for the Carrington to Seeley deeds at Book 2191 Pages 65 and 66 which were recorded in the wrong order, Carrington first deeded all his land in the east half of section 19 and land in section 20. He then conveyed an easement over land he still owned in the west half of section 19 in the proper order.

Accepting the facts in the FAC as true, Plaintiffs have adequately plead they retain a written easement. Defendant's arguments are questions of fact not resolvable on demurrer. Nevertheless, Plaintiffs have additionally plead a prescriptive easement, as described below.

2. The FAC contains contradictions which serve as admissions

Defendant argues that Plaintiff's alternative pleading of both an express and prescriptive easement is materially inconsistent which serve as admissions. Plaintiff argues it is standard real estate practice to plead both express and prescriptive easements in the alternative.

"A complaint may plead inconsistent causes of action [citations], although it be verified, if there are no contradictory or antagonistic facts [citation]." (*Steiner v. Rowley* (1950) 35 Cal.2d 713, 718–719, 221 P.2d 9.) Thus, "unless the alternate pleadings contain antagonistic statements, the statement of facts sufficient to constitute a cause of action in one count is not a bar to the maintenance of a separately stated count in the same pleading based upon inconsistent allegations." (*Id.* at p. 719, 221 P.2d 9.) "In the absence of inconsistent factual allegations any inconsistency between plaintiff's legal theories is immaterial." (*Thompson v. County of Fresno* (1963) 59 Cal.2d 686, 690, 31 Cal.Rptr. 44, 381 P.2d 924.) "The fact that a party has alleged more than is required to justify his right does not obligate him to prove more than is essential, and the unnecessary allegations will be treated as surplusage unless

the opposing party would be prejudiced.” (*Ibid.*) *Berman v. Bromberg* (1997) 56 Cal.App.4th 936, 944–945 [65 Cal.Rptr.2d 777, 781]

A Plaintiff may seek quiet title based upon an express easement, or, alternatively, a prescriptive easement, treating these as alternative legal theories arising from the same underlying facts. In *Ranch at the Falls LLC v. O’Neal* (2019) 38 Cal.App.5th 155, 181 [250 Cal.Rptr.3d 585, 604] (plaintiff sought to quiet title on the grounds of an express easement or, in the alternative, a prescriptive easement).

The Court finds that the FAC does not contain contradictory or antagonistic facts. As such, the alternative pleading is proper.

3. BLM is an indispensable party and needs to be joined

Defendant argues that the Bureau of Land Management (“BLM”) is a necessary and indispensable party that must be joined. Defendant concedes that BLM allows casual use but does not allow unrestricted business or commercial use. Defendant asserts there is likely a need to take the deposition of a BLM representative so that BLM’s actual position regarding access, permitted use, and restrictions can be established, rather than assumed.

Plaintiffs contend they met with BLM who advised the only issue BLM has with Plaintiffs’ casual use of the BLM land is that Defendant accused Plaintiffs of trespassing over his parcel to reach the BLM land and, based upon this accusation alone, BLM wants a court order that Plaintiffs have the legal right to use the existing road over Defendant’s parcel to access the BLM land. BLM has indicated to Plaintiffs that casual use includes walking and equestrian use and commercial use requires a BLM permit.

Under Code of Civil Procedure § 389(a), a person shall be joined as a party if (1) in their absence complete relief cannot be accorded among those already parties, or (2) they claim an interest relating to the subject of the action and are so situated that disposition in their absence may as a practical matter impair or impede their ability to protect that interest, or leave existing parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations.

Where plaintiffs seek only to have their right of access across a defendant's property established and to protect that right from interference by the defendant, the owner of the adjacent land to which access is sought is not necessarily an indispensable party. *Guerra v. Packard* (1965) 236 Cal.App.2d 272 [46 Cal.Rptr. 25, 39] (finding the State of California was not an indispensable party, as plaintiffs sought only to have their right of access across defendants’ property established and to protect this right from interference by defendants, which would not interfere with the rights of the State of California).

Plaintiffs seek relief for access across Defendant’s property, not a determination it may access BLM land. The Court accordingly does not find BLM is an indispensable party.

4. Equestrian Way was not located in the same spot as the Seeley Reservation Easement

Defendant argues the present configuration of Equestrian Way is not located in the same place as the easement described in the Seeley reservation documents. Defendant disputes Plaintiffs' contention that the present roadway is the same roadway contemplated by the Seeley documents and maintains that the location of any historical easement must be established from the operative instruments and competent survey evidence rather than from the present use of Equestrian Way.

Plaintiffs argue that the existing roadway running from Salmon Falls over the land of Viani, continuing over the lands of the Chapman and Leasure to the section corner marker is the same road described in the Seeley Reservation of Easement. The Records of Survey illustrate the location of the existing road consistent with the Seeley and Wilkinson easements, including a 1990 Record of Survey prepared for the predecessor of the BLM which expressly illustrates the existing roadway to BLM as "Equestrian Way" and the official record references to the Seeley easement and the Wilkinson easement. Plaintiffs assert that it is anticipated an expert survey and percipient witness will testify at trial.

The Court finds Defendant's argument is a question of fact not resolvable on demurrer.

5. Equestrian Way was not located in the same spot as the 1957 Wilkinson Easement

Defendant argues the present configuration of Equestrian Way is not located in the same place as the 1957 Wilkinson Grant of Easement. Defendant disputes the present roadway running over the Viani, Chapman, and Leasure properties follows the same route described or granted in the Wilkinson easement. Defendant contends Plaintiffs must establish from the actual grant and competent survey evidence, that the present Equestrian Way falls within the location and scope of the 1957 easement rather than relying upon later maps or references to the roadway.

Plaintiffs argue the roadway running from Salmon Falls over the land of Viani, continuing over the lands of Chapman and Leasure, and other subdivision parcels to the corner marker is the same road described in the Seeley Reservation and illustrated in the record of surveys. Plaintiffs assert that it is anticipated an expert survey and percipient witness will testify at trial.

The Court finds Defendant's argument is a question of fact not resolvable on demurrer.

TENTATIVE RULING #19:

DEFENDANT'S DEMURRER IS OVERRULED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.

RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.